

The complaint

Mrs A complains Soteria Insurance Limited rejected her home insurance claim and gave her poor customer service. She's represented in this complaint by her son, but to keep things simple my decision will only refer to Mrs A.

What happened

Mrs A had a buildings and contents insurance policy with Soteria. In August 2019 she claimed under the policy for storm damage to her roof. Mrs A's own builder had carried out temporary repairs.

Unfortunately Mrs A then went into hospital for about two months and was unwell for some months after. In September 2019 Soteria called and wrote to Mrs A about her claim but didn't receive a response, so it closed the claim. Some months later Mrs A contacted Soteria and it reopened the claim and its surveyors visited Mrs A to inspect the damage. But it declined the claim, saying it wasn't storm related and so wasn't covered under Mrs A's policy.

Mrs A complained to Soteria and had further communication with it. Mrs A said Soteria should have done more to assist her and asked why two surveyors had attended to inspect. She said Soteria's surveyors hadn't physically inspected the roof but used a camera instead, and she provided a report from her own builder which she thought was more detailed. And Mrs A provided a video to show that during the visit, one surveyor hadn't properly worn his Covid face mask and had addressed her unprofessionally.

Soteria said it correctly declined the claim as its surveyor reported the roof damage was due to wear and tear with no evidence of storm damage. And the report from Mrs A's builder didn't confirm it was storm related. Soteria said it was right to close the claim in September 2019, as it had tried to contact Mrs A and wasn't told she was in hospital or that her roof problem was continuing. Soteria explained there were two surveyors because they were a trainee and a supervisor. And it accepted one hadn't had his mask fully in place, though he'd remained two metres apart from Mrs A. And it accepted he'd addressed Mrs A unprofessionally. Soteria apologised for this and said it would give the surveyor feedback.

After looking into things, our investigator thought Soteria acted fairly regarding the claim. But he agreed with Mrs A and Soteria that the surveyor had acted unprofessionally. He thought this had caused Mrs A some distress and asked Soteria to pay £100 compensation for this.

Soteria agreed. But Mrs A didn't agree and asked for her complaint to be passed to an ombudsman for consideration. Therefore this complaint has come to me.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and

reasonable in the circumstances of this complaint.

The terms and conditions of Mrs A's policy say it will only cover damage to her home caused by specific events listed in the policy – one of these is '*Storm or flood*'. And the policy terms also say loss or damage caused by wear or tear or anything that happens gradually won't be covered.

When Mrs A claimed, she thought the damage had been caused by a storm but wasn't sure when the storm had happened. I've checked the weather reports for the area where Mrs A lives and they don't show there were any storm conditions in the two months before she made her claim, as set out in her policy's '*Storm*' definition.

Further, Soteria's surveyor report said the damage wasn't consistent with an insured storm event. Instead, it said there was a cracked tile directly in line with where water was entering Mrs A's home. And that the cause of the damage was natural breakdown of materials – in other words, wear and tear. I know Mrs A has pointed out the surveyor carried out the inspection using a camera instead of physically getting onto the roof, but I think the surveyor's photographs are sufficiently clear. And while I've seen that the report and quotation Mrs A has provided from two builders outline where water is coming in and the repairs needed, they don't say that the damage was caused by a storm.

Given that weather reports show there weren't storm conditions and Soteria's surveyor concluded the roof damage was consistent with wear and tear rather than storm damage, I'm satisfied it was reasonable for Soteria to conclude wear and tear was the cause of the roof damage and not an insured storm event. Wear and tear isn't covered under Mrs A's policy, so it was fair for Soteria to decline her claim. And the policy schedule shows Mrs A didn't have accidental damage cover under her policy. So while I understand Mrs A is unhappy Soteria has declined her claim, I think Soteria has declined it fairly and in line with the policy terms and conditions.

And I don't think Soteria acted unfairly when it closed the claim in September 2019. It had tried to contact Mrs A by telephone and letter in order to progress her claim, but didn't receive a response. I'm sorry to hear that Mrs A was in hospital at this time, but I've not seen that Soteria was made aware of that. And after Mrs A got back in touch, it reopened and considered the claim, although I know Mrs A didn't agree with its claim decision.

After reviewing the video evidence, Soteria itself accepts the surveyors mask wasn't fully in place and he addressed Mrs A unprofessionally. I understand Mrs A was shielding from Covid because of her health and age, so I'm satisfied the surveyor's mask would have caused her some concern, though I've seen nothing to suggest she asked him to adjust it or that this then affected Mrs A's health. And while I accept Soteria's explanation that no offence was intended, the surveyor did address Mrs A in a very familiar way so I can understand why she's unhappy about this.

Putting things right

I'm satisfied Soteria's surveyor caused Mrs A some distress here. Taking everything into account, I think £100 is fair and reasonable compensation for that distress, along with the apology and reassurances about giving feedback to the surveyor that Soteria has already offered Mrs A

My final decision

For the reasons set out above, Soteria Insurance Limited should pay Mrs A £100 compensation for the distress it caused her.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs A to accept or reject my decision before 12 October 2021.

Ailsa Wiltshire
Ombudsman